

Dr Ramcharan Thiagarajan Facs vs Medical Council Of India on 3 April, 2014

Equivalent citations: AIR 2015 (NOC) 94 (KAR.), 2014 (2) AKR 785

Author: Anand Byrareddy

Bench: Anand Byrareddy

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IN THE HIGH COURT OF KARNATAKA AT BANGALORE

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DATED THIS THE 03RD DAY OF APRIL 2014

BEFORE:

THE HON'BLE MR. JUSTICE ANAND BYRAREDDY

WRIT PETITION No.11207/2013 (GM-RES)

BETWEEN:

Dr.Ramcharan Thiagarajan, FACS

Aged 43 years

S/o K.Thiagarajan,

No.303, "G" Block,

Raheja Residency,

Koramangala III Block,

Bangalore - 560 034.

...PETITIONER

(By Shri.C.V.Nagesh, Senior Advocate for SHri M.R.Aneel, Advocate)

AND:

1. Medical Council of India,

Sector - VIII, Pocket - 14,

Dwaraka represented by its

Chairperson,

NEW DELHI.

2. Karnataka Medical Council,

No.70, 2nd floor, Vaidyakiya Bhavana,

K.R.Road, (Near Basavanagudi Post Office),

Basavanagudi represented by its

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Registrar,

Bangalore - 560004.

3. Maj.Pankaj Rai (Retd.)

No.211, Best Township,

S. Medahalli (Opp.Punjabi Dhaba),
Sarjapur, Attibele Road,
Bangalore - 562 107.

...RESPONDENTS

(By Shri Zulfikir Kumar Shafi, Advocate for Respondent no.1,
Shri D.S.Hosmath, Advocate for Respondent no.2,
Major Pankaj Rai, Party in Person - Respondent no.3)

This writ petition is filed under Articles 226 and 227 of the Constitution of India praying to quash/set aside the order dated 27.10.2012 passed by Respondent no.1, in striking of the name of the petitioner from the Indian Medical Register Annexure-A as well as from the Register of State Medical Council for a period of one year and etc.

This petition having been heard and reserved on 26.3.2014 and coming on for pronouncement of orders this day, the Court delivered the following:-

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ORDER

The facts of the case are as follows:

2. The petitioner is a Medical Practitioner and is a Consultant in Surgical Gastroenterology and Laparoscopic Surgery. He is also said to be a Multi-organ Transplant Surgeon and was working as a consultant with M/s Fortis Hospital, Bangalore.

The petitioner is said to be conferred with innumerable honours both in India and abroad, over the years in recognition of his expertise and advanced knowledge in the field of organ transplantation.

During the year 2010, Smt. Seema Rai, the wife of the third respondent was said to have been diagnosed with severe diabetes and end-stage renal failure, was undergoing dialysis treatment at M/s Fortis Hospital. She was also said to have been registered with the Zonal Co-ordination Committee of Karnataka (Hereinafter referred to as the "ZCKK", for brevity) for cadaver kidney transplantation. ZCKK is a body co-ordinating and regulating the harvesting of cadaver organs in the State of Karnataka. It is stated that this body ensures that whenever a cadaver organ becomes available, atleast five expectant recipient patients, on a waiting list, are intimated so as to ensure that atleast one recipient can be identified with a blood group cross match and other compatibility criteria, so that the cadaver organ is successfully grafted and to ensure that the organ is not lost or wasted.

It is said that M/s Fortis Hospital had received a call from ZCKK on 1.5.2010, intimating them of the availability of a kidney for transplantation with reference to Smt.Rai; The hospital is said to have, in

turn, intimated her and her family and she was immediately admitted to the Emergency Transplant surgery on the night of 1.5.2010. It transpires that she had waited for a year to be the recipient of the available organ. It is claimed that Smt.Rai and her family had been adequately counselled during this waiting period of the procedures and protocols involved.

It is claimed that ZCKK had intimated that pancreas was also available from the same cadaver donor and that there was no other prospective recipient registered for the same at that point of time with ZCKK. It is stated that on account of Smt.Rai being a severe diabetic, she was to benefit by a pancreatic transplant as well and hence it is claimed that she and her family were informed. It is said that after due deliberation, consent was given for the dual transplantation of kidney and pancreas.

It is stated that on the early morning of 2.5.2010, kidney transplant surgery was successfully carried out on Smt.Rai. It is thereafter that the pancreas transplantation had been carried out. It transpires that the patient developed a rare, but serious complication called - disseminated intravascular coagulation- (abnormal bleeding). Over the next three days, it is stated, the patient required multiple units of blood, plasma, platelets etc., to control the bleeding and she did appear to recover - but on the third day after surgery, she is said to have developed high fever and died the following day on account of sepsis.

It is stated that the third respondent who, it is claimed, had not raised any complaint or grievance during the treatment and surgery, is said to have lodged a complaint before the J.P.Nagar Police Station, as on 2.6.2010, accusing the petitioner and a Nephrologist, who had treated the deceased for her renal failure, of acts of negligence. This is said to have been followed by a complaint against them before the Karnataka Medical Council (Hereinafter referred to as the 'KMC', for brevity). On the basis of the criminal complaint, the police are said to have registered a case for offences punishable under the provisions of the Indian Penal Code, 1860. It is claimed that the investigation in the criminal case was incomplete as on the date of this petition.

The KMC had held an enquiry against the petitioner and another in respect of the complaint and after a full fledged enquiry, had held that there was no case made out indicating negligence or violation of the Code of Medical Ethics - on the part of the petitioner or others and exonerated them by an order dated 2.6.2011.

The third respondent is said to have filed a complaint before the Karnataka State Consumer Disputes Redressal Commission (KSCDRC) complaining of medical negligence and has claimed damages quantified at Rs.84.56 lakh.

The third respondent is also said to have lodged a complaint with the Department of Health and Family Welfare Services, seeking action against the hospital and the doctors concerned. It is stated that one Dr.V.Raju, Joint Director (Medical), Department of Health and Family Welfare, was nominated to conduct an enquiry. On a preliminary enquiry, the said Dr.Raju, is said to have given a finding that the treatment given to the patient was appropriate and that no fault could be found with the hospital, the doctors or its staff. The third respondent is said to have questioned the said finding

before the Appropriate Authority, alleging that there was an unfair bias in having arrived at the finding and that the enquiry was not properly conducted. The Appropriate Authority is said to have ordered a further enquiry under the provisions of the Transplantation of Human Organs and Tissues Act, 1994 (Hereinafter referred to as the "HOTA", for brevity). The said Authority, after conducting a detailed enquiry, gave its finding to the effect that the primary allegation as to M/s Fortis Hospital not being authorized to conduct multi-organ transplantations, was not tenable and gave the hospital a clean chit, by its order dated 22.12.2010.

It transpires that the third respondent approached the Lokayuktha with a complaint against the Chairman of the aforesaid Appropriate Authority. The Lokayuktha, in turn, is said to have called for a report of a Technical Committee, consisting of three doctors, who were to examine the opinion of the Appropriate Authority. The said Committee, it appears, had furnished a report disagreeing with the opinion of the Appropriate Authority. On the basis of the same, the third respondent having approached the Appropriate Authority over again, the said Authority had issued a show cause notice to the hospital and ultimately reversed its earlier opinion and held that M/s Fortis hospital was not authorized to conduct transplantation of pancreas and recommended for cancellation of the license granted to the hospital for transplantation of human organs and cancelled the certificate of registration, by its Order dated 12.9.2011. But even in the said review, the Appropriate Authority had held that there was a valid consent by the patient and her family and that there was no negligence on the part of the petitioner.

The Lokayuktha had, however, by an order dated 9.9.2011 held that it had no authority to enquire into the decision of the Appropriate Authority.

The third respondent had also questioned the earlier Order dated 22.10.2010 passed by the Appropriate Authority before this court by way of a writ petition in WP 6523/2011 and the same was disposed of by an order dated 8.9.2011, directing the Appropriate Authority to dispose of the second complaint expeditiously .

The Hospital is said to have challenged the Order dated 12.9.2011 passed by the Appropriate Authority by way of an appeal before an Appellate Authority, namely, the Secretary, Department of Health and Family Welfare, Government of Karnataka. The said appeal is said to have been dismissed by an order dated 24.11.2011. The same is said to have been challenged before this court by way of a writ petition in WP 45437/2011, the same was allowed and the matter was remitted back to the Appropriate Authority for a fresh consideration, while restraining the Hospital from performing transplantation surgeries during the pendency of the matter. That portion of the order restraining the Hospital from carrying on any transplantation surgeries was said to have been stayed in an appeal preferred before a division bench of this court in WA 8767/2012.

The third respondent is said to have challenged the order dated 2.6.2011 passed by the KMC - exonerating the petitioner of any act of negligence before the Medical Council of India (Hereinafter referred to as the 'MCI', for brevity). By an order dated 27.10.2012, the said appeal is said to have been allowed and the name of the petitioner was ordered to have been removed from the Indian Medical Register (IMR) for a period of one year, holding that the petitioner operated on Smt.Rai in a

Hospital, which did not possess a valid license issued by a competent authority for conducting surgery for pancreas transplantation and that he had failed to obtain informed consent for the entire process of kidney and pancreas transplantation. The said order is said to have been approved by the Board of Governors on 10.12.2012 and the same having been communicated to the petitioner by a letter dated 19.2.2013, the same is under challenge in this petition.

3. The learned Senior Advocate Shri C.V.Nagesh, appearing on behalf of the counsel for the petitioner contends as follows :

The impugned Order which seeks to reverse the finding that M/s Fortis Hospital was duly licensed to conduct kidney and pancreas transplantation is a bald and cryptic order - which does not discuss the voluminous material evidence in support of the finding and is hence liable to be set aside on that ground alone.

Elaborating further, it is pointed out that the Hospital had made three separate applications dated 18.1.2010 to the Director, Health and Family Welfare Services, Government of Karnataka, seeking Certificates of Registration to conduct transplantation under the following categories, which are as specified under the Transplantation of Human Organs Rules, 1995 (Hereinafter referred to as the 'THO' Rules, for brevity) namely :

(i) Kidney transplantation;

(ii) Transplantation of liver and other abdominal organs;

(iii) Cardiac, pulmonary, cardio-pulmonary transplantation Pursuant to the filing of such applications, it is said that a Committee constituted by the Appropriate Authority, had inspected the Hospital and verified that it has the facilities and the required Specialists for the said purpose and on being satisfied, the Appropriate Authority is said to have issued a Certificate of Registration dated 25.3.2010. The said Certificate was in respect of the following:

(i) Kidney

(ii) Liver

(iii) Homograft (permitted usage only) It is contended that under HOTA, separate registration for pancreas, intestines or other abdominal organs is neither granted nor is necessary, since all these are grouped under the same category, namely, "liver and other abdominal organs." It is also pointed out that there is no reference to pancreas anywhere in the HOTA or the Rules thereto. Attention is drawn to the opinion expressed by the then Joint Director, (Medical), Dr. H.C.Ramesh, when the very point was raised before the Appellate Authority, to the effect that it is not the practice in issuing certification to name all the organs as for instance in the category "Liver", it

is not necessary to mention all other abdominal organs. Pancreas is one of the abdominal organs.

It is contended that this opinion is also endorsed by Dr.V.Raju, Joint Director (Medical), who had testified before the KMC, to state : "Fortis Hospital has a license to perform pancreas transplantation as they already have permission to perform liver transplantation which includes pancreas and other abdominal organs".

It is hence contended that in the absence of any discussion in the impugned order, the basis for any conclusion drawn is not known and hence leads to a miscarriage of justice.

It is further contended that the KMC had considered the entire material placed before it in depth and an unanimous opinion was formed by the Council that there was no negligence or violation of the Code of Medical ethics, on the part of the doctors, who performed the transplant surgery on Smt.Rai. The contention of the third respondent that there was no informed consent either of the patient, or the attendant of the patient, had been negated both by the Appropriate Authority as well as the Appellate Authority. This is completely overlooked by the first respondent in passing the impugned order.

It is contended that consent of a patient undergoing organ transplantation is not the mere signature on a form, but is a long process of the patient being made to understand the implication of the surgery, and preparing the patient and her family mentally and the actual procedure is carried out only on being absolutely certain about the patient's physical state, before planning on the surgery. This was fully complied with by the team of doctors who attended on the patient in the present case, to the knowledge of the third respondent. The document itself, evidencing such consent is a necessary formality. In any event, the same had been accepted by more than one authority. However, the first respondent has negated the same even in the absence of any contra material or circumstances.

4. On the other hand, the third respondent, Major Pankaj Rai (retired), appearing in person would contend as follows:

The petitioner has an alternative remedy of an appeal under Section 24 of the Indian Medical Council Act,1956 (Hereinafter referred to as the 'IMC Act', for brevity), as against the impugned order and hence the petition would have to be rejected on that ground alone.

It is contended that the petitioner was well aware of the limitations of the transplantation license granted to M/s Fortis Hospital and in particular, the fact that the Hospital did not have the license to carry out transplantation of organs except those specifically stated in the license. The petitioner was also aware of Rule 4A of the THO Rules that prohibited him from carrying out transplantation surgery since he was also the Medical Co-ordinator of ZCCK. Despite being so aware, the petitioner willfully had violated the HOTA and the THO Rules. Consequently, the impugned

order insofar as it relates to the petitioner is appropriate.

It is contended that the petitioner and its personnel, including the doctors concerned, had failed to comply with the license conditions relating to appropriate disclosures mandated against the petitioner and also the mandates in relation to requisite awareness and psychological evaluation, to procure an "informed consent". In effect, the petitioner has failed to comply with Section 12 of the HOTA, which is a mandatory provision. Relevant depositions of the personnel of the petitioner - Hospital amply evidence the above position. Further, even ZCCK, in response to a query under the Right to Information Act, 2005, has expressed that it was unaware of the petitioner - Hospital not having a license for transplantation of Pancreas. It is thus clear that M/s Fortis Hospital had failed to discharge its fiduciary duties towards Smt.Rai and her family and violated the trust reposed in the petitioner - Hospital by her and her family.

It is contended that in so far as the claim that the applications for Certificate of Registration to conduct transplantation of all abdominal organs was granted, is misleading and incorrect. It is contended that in fact, only the covering letters, accompanying the applications, contained the above description and not the applications themselves. The applications are organ specific and so are licenses and registrations granted to a transplant centre. Therefore, M/s Fortis Hospital had made applications under Form No.11 specifically and only for transplantation of Kidney, Liver, Heart with Homograft. M/s Fortis Hospital had also included the organ - Pancreas in its application for the organ - Liver. Since separate applications are required to be made for each organ, the application of M/s Fortis Hospital was defective to the extent of containing Pancreas as an additional organ in the application for Liver. Consequently, the license for Pancreas was not granted to M/s Fortis Hospital. The petitioner was well aware that the Hospital did not pay the prescribed fee for the organ Pancreas nor had made a separate application as required in law. Consequently, the inspection committee did not recommend Pancreas, as part of license, for transplantation. The Hospital did not file an appeal within thirty days and allowed the matter of registration for Kidney, Liver and Homograft to reach finality.

It is further contended that a license granted under the HOTA is organ specific and separate licenses are granted for specified organs under the HOTA. The Government of Karnataka has issued specified licenses for transplantation of Pancreas to M/s Narayana Hrudayalaya, M/s Columbia Asia Hospital and M/s BGS Global Hospital. The Government of Tamil Nadu has also issued a Certificate granting license for Pancreas to M/s Global Hospital, Chennai. Similarly, in Delhi, M/s Apollo Hospital and All India Institute of Medical Sciences (AIIMS) have been granted separate licenses for Pancreas. The term "human organ" is defined clearly in Section 2(h) of the HOTA and the HOTA does not make any specific mention to any of the organs in a human body. The petitioner has been granted permission for 'Homograft', however,

even 'Homograft' does not appear in the HOTA, nor for that matter, the lower bowel. The Director General of Health Services, Government of India, by its letter dated 31.5.2011 has clarified that the license for Liver does not include 'Pancreas' and violation of this is punishable with both imprisonment and fine. The Public Information Officer of the Appropriate Authority for Organ Transplantation, Government of Karnataka, also clarified explicitly, by a letter of August 2011, that license for transplantation of Liver does not provide blanket permission for transplantation of other abdominal organs (Pancreas/Lower bowel) as well. Further, even the THO Rules in general and Rule 9(C) in particular, that is being referred to by the petitioner, are merely indicative and not exhaustive or suggestive of being exhaustive. It refers to 'experts and their qualifications' and not to the registration of Hospitals under the HOTA. The said position has been clarified by the Director General of Health Services by his letter dated 15.11.2011. However, it is contended that the petitioner is attempting to misinterpret the THO Rules to suit his convenience. The same is baseless and without any merit.

It is further contended that the following circumstances would indicate that an informed consent as mandated under the Act was never taken from the patient.

a. Smt.Seema Rai, the patient had not signed the "Informed Consent Form". The Act stipulates that the consent be given by the patient (recipient) only.

b. According to license condition No.3, the patient is required to be explained and be given a booklet in English and Kannada with detailed information about the investigations to be done, possible complications during investigations, transplantation and thereafter, appropriate assessment of the costs, risks and alternatives. This was never done. The petitioner has explicitly deposed before the KMC that he had explained the benefits and risks of combined transplant to Mrs.Seema Rai, but had not recorded the same.

c. Dr.Rajanna Sreedhara, the Nephrologist has deposed before the KMC on 3.2.2011 and said "I have not advised regarding Pancreas transplant along with kidney transplant". The petitioner was introduced to the patient for the first time at about 9.45PM on 1.5.2010 for the first time. The petitioner advised the patient for simultaneous Kidney and Pancreas transplant for the very first time.

d. A pre-requisite before taking the informed consent was evaluation by the cardiologist. In the Cadaver Kidney Transplantation Pre-Operative Recipient Orders, Dr.Rajanna Sreedhara had directed "References to the following for pre- operative assessment and clearance - Dr.Venkatesh Cardiologist". However, in his deposition before the KMC on 3.2.2011 he has deposed that, "I did not feel that there was a need for a Cardiologist evaluating at the time of admission". The Hospital records of 1.5.2010 states, "Informed Dr.Venkatesh about the admission and reference. Sir told that he will come and see the patient tomorrow".

e. The third respondent was advised to procure an immune suppressant drug (Simulect) in the event of surgery. The drug is required to be administered prior to surgery. However, the surgery was started before the complainant reached the Hospital as is evidenced from the hospital records. Incision was made at 7.30A.M. and the drug was administered at 8.15 A.M. f. The patient's daughter was woken up in the morning and asked to sign a form and write her mother's name stating that the patient has to be taken for a routine medical test. The daughter did not realise that she had been asked to sign on the consent form and the petitioner - Hospital has taken advantage of the same.

g. Suppression of the fact that the Hospital does not have a license for Pancreas renders any kind of consent null and void.

It is contended that it is clear from the averments of the petitioner that the petitioner had harvested Pancreas even before any consent was given by Smt.Seema Rai for the transplantation surgery. Thus, it is evident that the petitioner and M/s Fortis Hospital had already planned to carry out transplantation of Pancreas even before Smt.Seema Rai had consented to such transplantation. Thus, the violation of Section 12 of the HOTA is clearly evident from the aforementioned actions of the petitioner. Apart from Section 12 of the HOTA, transplantation surgery without procuring informed consent is violation of Regulation 7.16 of Code of Ethics Regulations of MCI. Thus, the petitioner deserves to be awarded a higher punishment than what has been awarded in the impugned order.

In the light of the above facts and circumstances, the following points arise for consideration :

(i)Whether the MCI possessed the jurisdiction to impose the punishment on the petitioner in the appeal filed by the third respondent.?

(ii)Whether there is a remedy of appeal available to the petitioner against the impugned order.?

(iii)Whether the order of the MCI can be sustained as being in accordance with principles of law and justice.?

Point no.(i) :

The MCI is a statutory autonomous body established under the Indian Medical Council Act, 1956 (Hereinafter referred to as the "IMC Act", for brevity) and is functioning under the administrative control of the Ministry of Health and Family Welfare of the Government of India. Its functions are,

(i) Maintenance of standards of medical education in the country;

(ii) to provide registration to the individuals who qualify as doctors from the recognised institutions in India or abroad which is included in the Schedule to the IMC Act;

(iii) to hold inquiry or disciplinary action against a registered medical practitioner with regard to any professional misconduct;

(iv) Grant of Letter of permission/renewal of permission in respect of different medical colleges in India after conducting the inspection of those colleges etc. That Section 20A of the IMC Act empowers the Council to prescribe standards of professional conduct and etiquette and code of ethics for medical professionals. Further, Section 33(m) of the IMC Act empowers the respondent - MCI to frame regulations in that behalf. The said provisions of the IMC Act read as under:

"20A. Professional Conduct - (1) The Council may prescribe standards of professional conduct and etiquette and a code of ethics for medical practitioners.

(2) Regulations made by the Council under sub-

section (1) may specify which violations thereof shall constitute infamous conduct in any professional respect, that is to say, professional misconduct, and such provision shall have effect notwithstanding anything contained in any law for the time being in force.

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33. Power to make Regulations The Council may, with the previous sanction of the Central Government, make regulations generally to carry out the purposes of this Act, and without prejudice to the generality of this power, such regulations may provide for:-

.....

(m) the standards of professional conduct and etiquette and code of ethics to be observed by medical practitioners;..."

That in exercise of the powers conferred under Section 20A read with Section 33(m) of the IMC Act, the MCI has framed the Indian Medical Council (Professional conduct, Etiquette and Ethics) Regulations, 2002, inter alia, prescribing the inclusive definition of 'professional misconduct', the appropriate council for dealing with cases of professional misconduct, provisions of appeal etc. The relevant portion of the Ethics Regulations, 2002 relevant for the present controversy is quoted hereunder:

"7. MISCONDUCT:

The following acts of commission or omission on the part of a physician shall constitute professional misconduct rendering him/her liable for disciplinary action:

...

7.16 Before performing an operation the physician should obtain in writing the consent from the husband or wife, parent or guardian in the case of minor, or the patient himself as the case may be. In an operation which may result in sterility the consent of both husband and wife is needed.

8. PUNISHMENT AND DISCIPLINARY ACTION 8.1 It must be clearly understood that the instances of offences and of Professional misconduct which are given above do not constitute and are not intended to constitute a complete list of the infamous acts, which calls for disciplinary action, and that by issuing this notice the MCI and or State Medical Councils are in no way precluded from considering and dealing with any other form of professional misconduct on the part of a registered practitioner. Circumstances may and do arise from time to time in relation to which there may occur questions of professional misconduct which do not come within any of these categories. Every care should be taken that the code is not violated in letter or spirit. In such instances as in all others, the MCI and or State Medical Councils brought before the MCI and or State Medical Councils.

8.2 It is made clear that any complaint with regard to professional misconduct can be brought before the appropriate Medical Council for disciplinary action. Upon receipt of any complaint of professional misconduct, the appropriate Medical Council would hold an enquiry and give an opportunity to the registered medical practitioner to be heard in person or by pleader. If the medical practitioner is found to be guilty of committing professional misconduct, the appropriate Medical Council may award such punishment as deemed necessary or may direct the removal altogether or for a specified period, from the register of the name of the delinquent registered practitioner. Deletion from the Register shall be widely publicized in local press as well as in the publications of different Medical Associations/ Societies/Bodies.

8.3 In case the punishment of removal from the register is for a limited period, the appropriate Council may also direct that the name so removed shall be restored in the register after the expiry of the period for which the name was ordered to be removed...."

That the disciplinary punishment has been imposed on the petitioner for two misconducts; firstly, that the petitioner has performed an organ transplantation surgery in a hospital which was not having the required statutory permission for conducting such procedure and secondly, that the petitioner has not taken the appropriate informed consent of the patient/attendant in respect of all the surgical procedures conducted on the patient.

It is evident from a plain reading of the above cited provisions that the MCI has the power and jurisdiction to impose the punishment in question.

Point no. (ii) : The IMC Act contemplates the maintenance of a Register of Medical Practitioners known as the Indian Medical Register, which contains the names of all persons who are enrolled on

any State Medical Register. The Registrar of a State Medical Council is required to inform the MCI of all additions and other amendments made, immediately; apart from furnishing a yearly statement on the first day of April, each year. Section 24 of the IMC Act reads thus :

"24. Removal of names from the Indian Medical Register :- If the name of any person enrolled on a State Medical Register is removed therefrom in pursuance of any power conferred by or under any law relating to registration of medical practitioners for the time being in force in any State, the Council shall direct the removal of the name of such person from the Indian Medical Register. (2) Where the name of any person has been removed from a State Medical Register on the ground of professional misconduct or any other ground except that he is not possessed of the requisite medical qualifications or where any application made by the said person for restoration of his name to the State Medical Register has been rejected, he may appeal in the prescribed manner and subject to such conditions including conditions as to the payment of a fee as may be laid down in rules made by the Central Government in this behalf, to the Central Government, whose decision, which shall be given after consulting the Council, shall be binding on the State Government and on the authorities concerned with the preparation of the State Medical Register."

It is seen that the petitioner's name is not ordered to be removed from the State Medical Register pursuant to any order passed under the provisions of the Karnataka Medical Registration Act ,1961, which is apparently contemplated under the above Section. Rather the power exercised is traceable to Regulations 8.2 and 8.3 of the IMC (Professional, Conduct, Etiquette and Ethics) Regulations , 2002. There is no appeal remedy provided against the same.

Point no.(iii) :

The entire text of the impugned order is produced herewith, for ready reference, in proceeding to consider this point .

"Appeal against order dated 02.06.2011 passed by Karnataka Medical Council filed by Sh.Pankaj Rai (F.No.102/2011):

The Ethics Committee considered the appeal filed by Sh.Pankaj Rai against the order dated 02.06.2011 passed by Karnataka Medical Council and after deliberating on the matter at length, the Committee is of the view that in this case the treating surgeon namely, Dr.Ramacharan Thiagarajan, Fortis Hospital, Bangalore operated in the hospital which was not possessing valid permission issued by Competent Authority for conducting the surgery for pancreas transplant and failed to take proper informed consent for the entire procedure of kidney and pancreas transplant surgery.

Therefore, the Ethics Committee found that Dr.Ram Charan Thiagarajan had violated the Indian Medical Council Regulations, especially Clause 7.16 and the hospital authorities were found to be working illegally as they could not prevent pancreatic

transplant surgery in their hospital, as they did not possess any valid permission to do so. In view of the above, the Committee decided to impose the following punishment :

The name of Dr.Ram Charan Thiagarajan be struck off from the Indian Medical Register as well as from the Register of State Medical Council for a period of one (01) year. The Fortis Hospital is found to have performed pancreatic transplant surgery without valid permission from the competent authority. The Govt. of Karnataka (Principal Secretary, Health and Family Welfare) is requested to take suitable action against the hospital management for conducting pancreatic transplant surgery without valid permission to do so.

(Dr.P.Prasannaraj) Additional Secretary (PROF. SNEH BHARGAVA)
CHAIRPERSON (Dr. Y.K.Gupta) (Dr.Chander S.Shetty) (Dr.Atul Sood) Member
Member Member (Dr. B.G.Tilak) (Dr. G.K.Sharma) (Amit Bansal)(Advocate)
Member Member Member "

It is to be kept in view that the MCI has proceeded to reverse concurrent findings of fact in favour of the petitioner. This required that the Council record its reasons. This is a well recognized principle. In a recent decision of the apex court, Ravi Yashwant Bhoir V. Collector (2012) 4 SCC 407, on a review of the case law in this regard, it is opined thus :

"38. It is a settled proposition of law that even in administrative matters, the reasons should be recorded as it is incumbent upon the authorities to pass a speaking and reasoned order. In Shrilekha Vidyarthi . v. State of U.P., AIR 1991 SC 537, this Court has observed as under:-

"36.....Every such action may be informed by reason and if follows that an act un-informed by reason is arbitrary, the rule of law contemplates governance by laws and not by humour, whim or caprice of the men to whom the governance is entrusted for the time being. It is the trite law that 'be you ever so high, the laws are above you.' This is what men in power must remember always'.

40. In L.I.C. v. Consumer Education and Research Centre, AIR 1995 SC 1811, this Court observed that the State or its instrumentality must not take any irrelevant or irrational factor into consideration or appear arbitrary in its decision. "Duty to act fairly" is part of fair procedure envisaged under Articles 14 and 21. Every activity of the public authority or those under public duty must be received and guided by the public interest. A similar view has been reiterated by this Court in Union of India v. Mohan Lal Capoor, AIR 1974 SC 87 and Mahesh Chandra v. U.P. Financial Corporation, AIR 1993 SC 935.

41. In State of W.B. v. Atul Krishna Shaw, AIR 1990 SC 2205, this Court observed that: (SCC p.421, para7) "7.... Giving of reasons is an essential element of

administration of justice. A right to reason is, therefore, an indispensable part of sound system of judicial review."

42. In *S.N. Mukherjee v. Union of India*, AIR 1990 SC 1984, it has been held that the object underlying the rules of natural justice is to prevent miscarriage of justice and secure fair play in action. The expanding horizon of the principles of natural justice provides for requirement to record reasons as it is now regarded as one of the principles of natural justice, and it was held in the above case that except in cases where the requirement to record reasons is expressly or by necessary implication dispensed with, the authority must record reasons for its decision.

43. In *Krishna Swami v. Union of India*, AIR 1993 SC 1407, this Court observed that the rule of law requires that any action or decision of a statutory or public authority must be founded on the reason stated in the order or borne-out from the record. The Court further observed: (SCC p.637 para 47) "47... Reasons are the links between the material, the foundation for their erection and the actual conclusions. They would also demonstrate how the mind of the maker was activated and actuated and their rational nexus and synthesis with the facts considered and the conclusions reached. Lest it would be arbitrary, unfair and unjust, violating Article 14 or unfair procedure offending Article 21"

44. This Court while deciding the issue in *Sant Lal Gupta. v. Modern Co-operative Group Housing Society Ltd.*, (2010) 13 SCC 336, placing reliance on its various earlier judgments held as under: (SCC pp345- 346 para 27) "27. It is a settled legal proposition that not only administrative but also judicial orders must be supported by reasons, recorded in it. Thus, while deciding an issue, the Court is bound to give reasons for its conclusion. It is the duty and obligation on the part of the Court to record reasons while disposing of the case. The hallmark of order and exercise of judicial power by a judicial forum is for the forum to disclose its reasons by itself and giving of reasons has always been insisted upon as one of the fundamentals of sound administration of the justice - delivery system, to make it known that there had been proper and due application of mind to the issue before the Court and also as an essential requisite of the principles of natural justice.

'3.....The giving of reasons for a decision is an essential attribute of judicial and judicious disposal of a matter before Courts, and which is the only indication to know about the manner and quality of exercise undertaken, as also the fact that the Court concerned had really applied its mind.' The reason is the heartbeat of every conclusion. It introduces clarity in an order and without the same, the order becomes lifeless. Reasons substitute subjectivity with objectivity. The absence of reasons renders an order indefensible/unsustainable particularly when the order is subject to further challenge before a higher forum. Recording of reasons is principle of natural justice and every judicial order must be supported by reasons recorded in writing. It ensures transparency and fairness in decision making. The person who is adversely affected must know why his application has been rejected."

45. In *Institute of Chartered Accountants of India v. L.K. Ratna*, AIR 1987 SC 71, this Court held that on charge of misconduct the authority holding the inquiry must record reasons for reaching its conclusion and record clear findings. The Court further held: (SCC P.558 para30) "30.... In fairness and justice, the member is entitled to know why he has been found guilty. The case can be so serious that it can attract the harsh penalties provided by the Act. Moreover, the member has been given a right of appeal to the High Court under S. 22A of the Act. To exercise his right of appeal effectively, he must know the basis on which the Council has found him guilty. We have already pointed out that a finding by the Council is the first determinative finding on the guilt of the member. It is a finding by a Tribunal of first instance. The conclusion of the Disciplinary Committee does not enjoy the status of a 'finding'. Moreover, the reasons contained in the report by the Disciplinary Committee for its conclusion may or may not constitute the basis of the finding rendered by the Council. The Council must, therefore, state the reasons for its finding".

46. The emphasis on recording reason is that if the decision reveals the 'inscrutable face of the sphinx', it can by its silence, render it virtually impossible for the courts to perform their appellate function or exercise the power of judicial review in adjudging the validity of the decision. Right to reason is an indispensable part of a sound judicial system, reasons at least sufficient to indicate an application of mind of the authority before the court. Another rationale is that the affected party can know why the decision has gone against him. One of the salutary requirements of natural justice is spelling out reasons for the order made. In other words, a speaking out, the inscrutable face of the sphinx is ordinarily incongruous with a judicial or quasi-judicial performance.

xxx In *Principles of Administrative Law*, authored by Shri M.P.Jain and Shri S.N.Jain, Fifth Edition, it is opined as follows:-

Adjudicatory bodies in an area may be arranged in a hierarchical structural order. Before *Siemens*, the question was considered by the Supreme Court in several cases whether all such bodies must give reasons for their decisions when a case moves from the lower to the higher body. Here the courts have considered several alternative situations.

(i) The lower authority itself may not give reasons, or may give nebulous or scrappy reasons. If the appellate authority merely affirms such an order without giving any reasons, the order of the appellant authority will be bad.

(ii) Where, however, the facts are so notorious that the reasons for the administrative action are too obvious and could not possibly be questioned by anybody, the fact that no reasons were given by the revision authority may not vitiate the action (See:

Nandram Hunatram vs. Union of India, AIR 1966 SC 1922).

(iii) It has also been held that reasons ought to be given by the appellate authority where it is endorsing the order of the lower authority but the order of the latter contains several reasons some of which are good and some bad. The appellate body should at least indicate clearly that it was

accepting the reasons given by the lower authority. (See: Bhagat Raja v. Union of India, AIR 1967 SC 1606 at 1610).

(iv) An appellate authority must give reasons where it is reversing the order of the lower authority, whether the latter has given reasons or not.

(v) A ticklish question is raised, however, when an authority makes a reasoned order and the appellate authority merely affirms it. Should the appellate body give its own reasons in such a situation?

Earlier a view was expressed that no reasons need be given by the appellate body in such a situation because it could be assumed that it had accepted the reasons given by the lower authority. (See: M.P. Industries vs. Union of India, AIR 1966 SC 671; CIT vs. Pilliah, (1967) 63 ITR 411 SC). But then the judicial view underwent a change and it came to be ruled that the appellate body should give its own reasons even though it is affirming a reasoned decision of the lower body; at least it should be indicated clearly by the appellate authority that it was accepting the reasons given by the lower authority (See: Bhagat Raja v. Union of India, AIR 1967 SC 1606) .

The said authors have further opined that the simplest and most effective rule to follow in adjudicatory proceedings will be that every body, appellate or original, should give its reasons for its decision irrespective of any consideration, unless there is some reason (security or public interest) for not doing so. The appellate body should give its own reasons irrespective of the fact whether it is affirming the decision of the lower body and whether the lower body has given its own reasons.

In "Writs Law and Practice" authored by Shri M.R. Mallick, it is opined as follows:-

Except in cases where the requirement of recording of reasons has been dispensed with expressly or by necessary implication, an administrative authority exercising judicial or quasi-judicial functions must record the reasons for its decision. Such a decision is subject to the appellate jurisdiction of the Supreme Court under Article 136 as well as the supervisory jurisdiction of High Court under Article 227 and the reasons, if recorded, would enable the Supreme Court or High Courts to effectively exercise the appellate or supervisory power. But this is not the sole consideration. Other considerations for the requirement of recording reasons are - (i) to guarantee consideration by the authority; (ii) to introduce clarity in the decision; and (iii) to minimize chances of arbitrariness in decision making. However, it is not required that the reasons should be as elaborate as in the decision of a court of law. The extent and nature of the reasons would depend on particular facts and circumstances (See: D.B. Raji v H.J. Kantharaj (1990) 4 SCC

178).

However, act of recording reasons may differ from case to case.

Recording of reasons are sufficient which may be discernible from the order itself or contemporaneous record. Therefore, the reasons need not be contained in the order itself, administrative order itself may contain reasons or the file may disclose reasons to arrive at the decision showing application of mind to the facts in issue (See: M.J. Shirani v. State of Karnataka, AIR 1995 SC 1770; (1995) 6 SCC 289).

In his "Commentary on the Constitution of India" by Acharya Dr. Durga Das Basu, Eighth Edition, Volume 7, it is opined as follows:-

The English Law did not till recently, recognise a general duty to give reasons for an administrative decision. (See: R v. Secretary of State for the Home Department *ex parte* Doody, (1994)1 AC 531; (1993)3 WLR 154 : (1993)3 All ER 92; R v.

Secretary of State for the Home Department *ex parte* Fayed, (1998)1 WLR 763; (1997)1 All ER 228.) Nevertheless, it was equally beyond doubt that such a duty "may in appropriate circumstances be implied" (by LORD MUSATILL in Doody's case) or as was said in Fayed's case "it may be a case which is crying for reasons". An analysis of factors which will often be material to such an implication is to be found in R v. Civil Service Appeal Board *ex parte* Cunningham, (1991)4 All ER 311, wherein it was observed: "The principles of public law will require that those affected by decisions are given the reason for those decisions in some cases, but not in others".

It was held that the absence of reasons for a decision where there is no duty to give them cannot of itself provide any support for the suggested irrationality of the decision. The only significance of the absence of reasons is that if all other known facts and circumstances appear to point over-whelmingly in favour of a different decision, the decision maker who has given no reason cannot complain if the court draws the inference that he had no rational reason for his decision. (See: R vs. Secretary of State for Trade & Industry *exp.* Lmbro Plc., (1989) 1 WLR 525; Padfield vs. Minister of Agriculture, Fisheries and Food, (1968)AC 1997).

Natural justice demands that (1) the applicant be informed of the nature of the case against him; and (2) he be given a reasonable opportunity to be heard. And, as has been said, if "opportunity to be heard is to have any value in practice", the decision maker must assign or identify the reason for any adverse decision. (See: R. v. Secretary of State for the Home Department *ex parte* Fayed, (1998)1 WLR 763; (1997)1 All ER 228.). Thus, the right of hearing and the duty to give reasons are related, one with the other, and failure to give reasons is, where there is a duty to give reasons, treated as breach of natural justice."

In USA, the need for an agency to state the reasons was not consistent till 1990. In *Dunlop vs. Bachowski* (1975) 421 US 560, the court held that the agency was required "a statement of reasons And the essential facts upon which the Inferences are based, even though there was no statutory requirement of findings or reasons.

The Supreme Court of India has held that withholding reasons amounted to denial of opportunity of hearing (See: *Maneka Gandhi vs. Union of India*, AIR 1978 SC 597).

In *S.N.Mukherjee vs. Union of India*, AIR 1990 SC 1984, it was observed that except in cases where the requirement of recording of reasons has been dispensed with expressly or by necessary implication, an administrative authority exercising judicial or quasi-judicial function must record reason for its decision. In another case, the court observed that though the principles of natural justice do not require reasons for decision, there is necessity for giving reasons in view of expanding law of judicial review to enable the citizens to discover the reasoning behind the decision. Right to reason is an indispensable part of a sound system of judicial review. Under our Constitution, an administrative decision is subject to judicial review if it affects the rights of citizens; it is, therefore, desirable that reasons should be stated. (See: *Union of India vs. Nambudiri*, AIR 1991 SC 1216).

In *Seimens Engg. Co. v. Union of India*, AIR 1976 SC 1785, it was held that rule requiring reasons to be recorded is a basic principle of natural justice. (See: *Maneka Gandhi v. Union of India*, AIR 1978 SC 597; *State of West Bengal v. Atul Krishna Shaw*, AIR 1990 SC 2205). Making a decision without stating reason is a negation of the rule of law (See: *Mahabir Prasad Santosh Kumar vs. State of U.P.*, AIR 1970 SC 1302 ; *Govt. Branch Press v. D.B.belliappa*, AIR 1979 SC 429; *Ram Chandra vs. Union of India*, AIR 1986 SC 1173). It was held that reasons play a very important factor inasmuch as reasons disclose how the mind is applied to the subject matter for a decision and that if reasons are disclosed, in that event, it would reveal the conclusions whether based on actual materials or not. (See: *Union of India v. M.L.Kapoor* , AIR 1974 SC 87; *Harinagar Sugar Mills v. Shyam Sundar*, AIR 1961 SC 1669; *Bhagat Raja v. Union of India*, AIR 1967 SC 1606; *Travancore Rayons v. Union of India*, AIR 1971 SC 862; *Rama Varma Bharathan Thampuran v. State of Kerala*, AIR 1979 SC 1918).

In *Shri Swamiji v. Commissioner, HR & CE*, AIR 1980 SC 1, it was held that reason is the soul of law and when reason of any particular law ceases, so does the law. In *Maharashtra State Board of Secondary & Higher Secondary Education v. K.S.Gandhi*, (1991) 2 SCC 716, it was held that reasons are harbinger between the mind of the maker of the order to the controversy in question and the decision or conclusion arrived at and they also exclude the chances to reach arbitrary, whimsical or capricious decision or conclusion. (See: *Gurdial Singh Fijji vs. State of Punjab*, (1979) 2 SCC 368; *Punjab SEB v. Git Singh*, (2009)13 SCC 118).

The purpose of disclosure of reasons is that people must have confidence in judicial and quasi-judicial authorities. Unless reasons are disclosed, a person cannot know whether or not the authority concerned has applied its mind. Also, giving reasons minimises the chances of arbitrariness. It is also an essential requirement of the rule of law (See: *Chairman, Disciplinary Authority, Rani Laxmibai Kshetriya Gramina Bank vs. Jagdish Sharan Varshney*, 2009 4 SCC 240).

In "Public Law" by Dr.Mark Elliott and Dr.Robert Thomas, it is stated as follows:-

Fairness as understood at common law may require the giving of reasons. In order to decide whether this is so, the reviewing court examines the circumstances of the case, balancing any arguments for and against the giving of reasons in order to come to a rounded view about what fairness requires. (See: *R vs. Higher Education Funding Council exp Institute of Dental Surgery*, (1994)1 WLR 242.) Prominent among the factors that weigh in favour of the imposition of a reason - giving duty is the

importance of the right or interest that is at stake. So if, as in *R. Secretary of State for the Home Department ex parte Doody*, (1994)1 AC 531,564, the decision affects the claimant's liberty, this will be a strong indication that reasons should be given, as will the fact that the decision impacts on other important interests such as professional standing, reputation (See: *R v. Ministry of Defence, ex p Murray* (1998) COD 134; *R v. City of London Corporation, ex p Matson*, (1997)1 WLR 765 or bodily integrity or bodily integrity (See: *R (Wooder) v. Feggetter*, (2002)EWCA Civ.554, (2003)QB 219). A duty to give reasons is also likely to be imposed in respect of decisions that are aberrant - that is, decisions that, on the face of it, seem inexplicable, perhaps because they appear to fly in the face of the great weight of evidence (See: *R vs. Higher Education Funding Council exp Institute of Dental Surgery*, (1994)1 WLR 242, 263). On the other hand, the court also has to weigh factors that point away from a duty to give reasons: this may be so where, for example, giving reasons would place 'an undue burden on the decision-

maker' or 'call for the articulation of sometimes inexpressible value judgments. (See: *R vs. Higher Education Funding Council exp Institute of Dental Surgery*, (1994)1 WLR 242, 257).

In *South Buckinghamshire District Council v. Porter*, (2004) UKHL 33, (2004)WLR 1953 (36), it was said that while reasons must enable people to understand why the decision was reached and what the conclusions were on the main points of controversy, they need refer only to the 'main issues' and not to 'every material consideration'. It also seems that the court will take into account the burden that a requirement to give reasons imposes on the decision - maker: where, for example, decisions are taken by groups of people, it has been held that it would be unduly burdensome to require each individual decision-maker's thinking to be set out, such that very broad-brush reasons may suffice in such situations. (See: *R(Asha Foundation) v. Millenium Commission* (2003) EWCA Civ.88).

The standard of reasons required are lucidly expounded in *De Smith's Judicial Review*, 6th Edition:

It remains difficult to state precisely the standard of reasoning the court will demand. Much depends upon the particular circumstances¹, and the statutory context in which the duty to give reasons arises. It is clear that the reasons given must be intelligible and must adequately meet the substance of the arguments advanced²arguments advanced². It will not suffice to R. (on the application of the *Asha Foundation*) v *The Millennium Commission*, [2003]EWCA Civ 88 at [27]; *Flannery and Flannery v Halifax Estate Agencies Ltd*. [2000]1 WLR 377 at 382.

² (*Re Poyser and Mills' Arbitration* [1964] 2 Q.B. 467 at 477-478, is the most frequently cited judicial articulation of the test of the adequacy of reasons; approved in *Westminster CC v Great Portland Estates Plc* [1985] A.C.661 at 673; cf. *Save Britain's Heritage v Number One Poultry Ltd* [1991] 1 W.L.R. 153 at 165; and *Edwin H. Bradley and Sons Ltd*.

V Secretary of State for the Environment, (1982) 47 P. & C.R. 374 (same standard was applied despite the subjective element in the minister's duty under the Town and Country Planning Act 1971 S.9(8) to give such statement as he considers appropriate of the reasons for his decision); Bolton MBC v. Secretary of State for the Environment (No.2), [1995] 3 P.L.R.37).

merely recite a general formula or restate a statutorily-prescribed conclusion³.

It is also preferable if the reasons demonstrate that a systematic analysis has been undertaken by the decision-maker⁴. However, the courts have not attempted to define a uniform standard or threshold which the reasons must satisfy, and on occasion, courts have expressed concern that decision-makers be

3. R. v Birmingham City Council Ex.p.B [1999] E.L.R..305 at 311 [Scott Baker J. noting that the letter sent did "nothing more than make ritual incantation of the two-stage process that is applicable for deciding these appeals"). However, where the decision involves a clear application of policy, "[t]he reason is the policy"; R. (on the application of Thompson) v Secretary of State for the Home Department[2003]EWHC 538 at [41].

4. (See: e.g. R. (on the application of Lowe) v Family Health Services Appeal Authority [2001] EWCA Civ 128 at [18] (reasons inadequate because they did not deal with the question in correct "logical sequence"); R. v Crown Court at Canterbury Ex p. Howson-Ball [2001] Env L.R. 36 at [32] (referring to a need for the Crown Court to provide "some analysis" of the relevant matters); Curtis v Lodon Rent Assessment Committee [1999] Q.B. 92 at 118-119 (the rent assessment committee's duty to give reasons required some "working through", i.e. an arithmetical explanation, of the assessment)). granted "a certain latitude in how they express themselves"⁵. The reasons must generally state the decision-maker's material findings of fact (and, if the facts were disputed at the hearing, their evidential support⁶ and meet the substance of the principal arguments that the decision-maker was required to consider. If a decision is made on the basis of the evidence of witnesses or experts, reasons for preferring one witness or expert over another should generally be explained.⁷ In short, the reasons must show

5. (R. v Brent London LBC Ex p. Baruwa (1997) 29 H.L.R. 915 at 929, approved in William v Wandsworth LBC [2006] EWCA Civ 535; [2006] H.L.R. 42 at [18].)

6. (Cf. R. v Secretary of State for the Home Department Ex p. Swati [1986] 1 W.L.R. 477 (passenger refused entry entitled only to be told the ground for refusal; statement of facts required only after notice of appeal is given.))

7. (R. (on the application of H) v Ashworth Hospital Authority [2002] EWCA Civ 923; [2003] 1 W.L.R. 127 at [81]' R. (on the application of Bushell) v Newcastle Upon Tyne Licensing Justice [2004] EWHC 446 at [41] cf. R. (on the application of Alliss) v Legal Services Commission [2002] EWHC 2079 at [65].) that the decision-maker successfully came to grips with the main contentions advanced by the parties⁸, and must tell the parties in broad terms why they lost or, as the case may be, won⁹.

8. (In addition to *Re Poyser* [1964] 2 Q.B. 467 authority for the proposition in the text can be found, e.g. in: *R. v Immigration Appeal Tribunal Ex p. Khan* [1983] Q.B. 790; *Knights Motors Ltd v Secretary of State for the Environment* [1984] J.P.L. 584; *R. v Mental Health Tribunal Ex p. Pickering* [1986] 1 All E.R. 99; *Bolton MBC* [1995] 3 P.L.R. 37; *MIT Securities Ltd v Secretary of State for the Environment* (1998) 75 P. & C.R. 188, CA; *S v Special Educational Needs Tribunal* [1995] 1 W.L.R. 1627 at 1636; *R. v Immigration Appeal Tribunal Ex p. Jebunisha Patel* [1996] Imm. A.R. 161 at 167; *Arulandandam v Secretary of State for the Home Department* [1996] Imm. A.R. 587 at 592; *R. v Secretary of State for Education Ex p. G* [1995] E.L.R. 58 at 67; *R. v Lancashire CC Ex p. Maycock* (1995) 159 L.G. Rev. 201 ("standard letter" with individual variations sufficient in circumstances); *R. v Islington LBC Ex p. Hinds* (1996) 28 H.L.R. 302; *R. v criminal injuries Compensation Board Ex P. Cook* [1996] 1 W.L.R. 1037 at 1043; *R. v Secretary of State for Transport Ex p. Richmond-upon-Thames LBC* [1996] 1 W.L.R. 1460, CA.)

9. (*UCATT v Brain* [1981] I.R.L.R. 224 at 228 (Lord Donaldson M.R.: reasons required of industrial tribunal); *Piggott Brothers & Co. Ltd v Jackson* [1991] I.R.I.R. 309 at 313; *Ex p. Ross*, *The Times*, June 9, 1994, CA (prison governor giving reasons for transfer of disruptive prisoner did not need to give "Chapter and verse" of prisoner's conduct relied upon. See also *R. (on the application of Bahram) v Immigration Appeal Tribunal* [2003] EWHC 1453 at [8] (Maurice Kay J.: "what is essential is not that an adjudicator should deal with every point at length, but that the determination should be sufficiently reasoned to enable a claimant, his advisers, and any appellate or reviewing body, to see why the claimant lost on a particular issue").

Provided the reasons satisfy these core criteria, they need not be lengthy¹⁰. Judicial review may be inappropriate where the dispute relates to issues about the precise drafting of a decision¹¹. Courts should also not scrutinize reasons with the analytical rigour employed on statutes or trust instruments¹², and ought to forgive obvious mistakes that were unlikely to have misled anyone¹³. Some general guidance on the standard of reasons required may also be derived from a consideration of the purposes served by a duty to give reasons. Thus, reasons should be sufficiently detailed as to make quite clear to the parties - and especially the losing party - why the decision-maker decided as it did, and to avoid the impression that the decision was based upon extraneous

10. (*Stefan v General Medical Council* [1999] 1 W.L.R. 1293 at 1304 (reasons "need not be elaborate nor lengthy")

11. (*R. (on the application of W) v Acton Youth Court* [2005] EWHC 954; (2006) 170 J.P.31)

12. (*Seddon Properties Ltd v Secretary of State for the Environment* (1978) 42 P. & C.R. 26; *UCATT v Brain* [1981] I.R.L.R.224)

13. (*Elmbridge BC v Secretary of State for the Environment* (1980) 39 P. & C.R.543 at 547-548).

considerations, rather than the matters raised at the hearing¹⁴. Reasons must be sufficient to reveal whether the tribunal made any error of law.¹⁵ Reasons must also enable the court to which an appeal lies to discharge its appellate functions, and when this is limited to questions of law, it will only be necessary to explain the exercise of discretion and to set out the evidence for the findings of fact in enough detail to disclose that the decision-maker has not acted unreasonably¹⁶. The reasons should refer to the main issues in the dispute, but need not necessarily deal with every material consideration.¹⁷

14. (See, e.g. *R. v Mental Health Review Tribunal Ex p. Clatworthy* [1985] 3 All E.R. 699; *R.(on the application of Ashworth Hospital Authority) v Mental Health Review Tribunal for West Midlands and North West Region* [2001] EWHC Admin 901 at [77]; *South Bucks DC v Porter (No.2)* [2004] UKHL 33; [2004] 1 W.L.R. 1953 at [36].)

15. (*Ashworth Hospital* [2001] EWHC Admin 901 at [77]; *South Bucks* [2004] UKHL 33; [2004] 1 W.L.R. 1953 at [36].)

16. (*Varndell v Kearney & Trecker Marwin Ltd* [1983] I.C.R.683 at 693-694 , criticizing the possibly more stringent test propounded in *Alexander Machinery (Dudley) Ltd v Crabtree* [1974] I.C.R. 120 at 122; cf. *Thameside MBC v Secretary of State for the Environment* [1984] J.P.L. 180, where the court may have set a high standard to ensure that a peripheral consideration in the determination of a planning appeal had not been given undue importance. And see *R. v Chief Registrar of Friendly Societies Ex p. New Cross Building Society* [1984] Q.B. 227.)

17. (*South Bucks* [2004]UKHL 33; [2004] 1 W.L.R.1953 at [36]; *R. v Criminal Injuries Compensation Board Ex p. Cook* [1996] 1 W.L.R.1037 at 1043.) Brevity is an administrative virtue, and elliptical reasons may be perfectly comprehensible when considered against the background of the arguments at the hearing¹⁸. Some decisions (such as the refusal of planning permission by an inspector) should be accompanied by reasons that are sufficiently precise to permit the individual to make the modifications necessary to secure a favourable decision in the future, or (where a Secretary of State disagree with an inspector) to enable an objector to know what, if any, impact the planning considerations taken into account in a grant of planning permission may have in

18. (*Elliot v Southwark LBC* [1976] 1 W.L.R. 499; *R. v Mental Health Tribunal Ex p. Pickering* [1986] 1 All E.R. 99; *Great Portland Estates Plc v Westminster City Council* [1985] A.C.661 at 673. The courts have recognised that the decision letters of inspectors are generally more succinct than the report and recommendations by inspectors together with letter of decision from the Secretary of State in non-devolved appeals. Nonetheless, in devolved decisions inspectors are held to much the same standard; see *Hope v Secretary of State for the Environment* (1975) 31 P. & C.R.120; cf. *Ellis v Secretary of State for the Environment* (1974) 31 p. & C.R. 130; and *Hatfield Construction Ltd v Secretary of State for the Environment* [1983] J.P.L. 605. And see A. Barker and M. Couper, "The Art of Quasi- judicial Administration: The Planning Appeal and Inquiry System in England" (1983) 6 Urban Law and Policy 363, pp. 454-455, where the increase in court challenges o inspectors' decisions in the early 1980s is attributed to deficiencies in inspectors' skills in writing decision letters.) relation to the determination of future applications¹⁹.

The standard of reasons required in certain specific contexts has been considered. For example, a mental health review tribunal should explain why one witness is preferred to another; the reasons should sufficiently inform the patient and the hospital of the findings of the tribunal; and the court should take into account the fact that the tribunal has a legally qualified chairman and that reasons do not have to be given immediately²⁰. As for immigration adjudicators, it has been held that there is no duty on the adjudicator to deal with every argument raised by the advocate in the case²¹, but the critical matters must be explained sufficiently clearly for the "thought processes" of the adjudicator on "material findings" to be understood.²²

19. (*Save Britain's Heritage v Number 1 Poultry Ltd* [1991] 1 W.L.R. 153 at 167. A mental health review tribunal should give sufficiently precise reasons to enable patients and medical advisors to cover the matters on a renewed application)

20. (*Ashworth Hospital* [2001] EWHC Admin 901 at [77])

21. (*Eagil Trust Co Ltd v Piggott-Brown* [1985] 3 All E.R. 119 at 122)

22. (*English v Emery Reimbold and Strick Ltd* [2002] EWCA Civ 605; [2002] 1 W.L.R. 2409 at [19] (Lord Phillips M.R.).

However, whilst concern for the quality of administrative justice does not require that all tribunals in all circumstances comply with some universally applicable standard, it is, nonetheless, essential that the courts do not allow the duty to give reasons to atrophy. In principle a remedy ought to lie for failure to give reasons²³, unless the court is satisfied that no real prejudice has been caused to the applicant.²⁴ The reasons given by the reviewing court can often remedy the shortcomings of the original decision maker.

23. (On an appeal from a decision on a question of law the courts may well have an inherent jurisdiction to direct the minister or tribunal to give adequate reasons although no formal application for mandamus has been made; see *Iveagh (Earl) v Minister of Housing and Local Government* [1964] 1 Q.B. 395 at 410.)

24. (*R. v Liverpool CC Ex p. Liverpool Taxi Fleet Operators' Association* [1975] 1 W.L.R. 701 at 706; cf. *Preston BC v Secretary of State for the Environment* [1978] J.P.L. 548 (omission of significant part of reasoning normally prejudicial); *Save Britain's Heritage* [1991] 1 W.L.R. 153. Outside the planning field, however (where the requirement to demonstrate substantial prejudice is required by statute), the courts will not readily conclude that an applicant is not prejudiced by an inadequately reasoned decision. The test may be whether any other conclusion than that reached was realistically possible: *R. v Ministry of Defence Ex p. Murray* [1998] C.O.D. 134, or whether it is "obvious" that there is no injustice (*R. v Winchester Crown Court Ex p. Morris* [1996] C.O.D. 104) Whatever standards are applied by judges to the adequacy of reasons given under a duty, it seems likely that reasons given voluntarily - where there is no duty - will be reviewed in accordance with the same standards as are applied to compulsory reasons²⁵. It is no answer to an attack on the reasons for a decision on the grounds that they disclose a failure to take into account a relevant consideration or that an

irrelevant consideration was taken into account or an error of law was made, that there is no requirement to give reasons. The unlawfulness in such a case lies not in the failure to give proper reasons, but in the unlawful nature of the decision, reasoning, or failure to reason, thereby disclosed.²⁶

25. (Elmbridge BC v Secretary of State for the Environment (1980) 39 P. & C.R. 543; Westminster City Council v Secretary of State for the Environment [1984] J.P.L. 27 at 29- 30; also Grenfell-Baines v Secretary of State for the Environment [1985] J.P.L. 256. cf. Kentucky Fried Chicken Pty Ltd v Gantidis (1979) 140 C.L.R. 675. In R. v Secretary of State for Transport Ex p. Richmond-upon-Thames LBC, the CA([1996] 1 W.L.R. 1460) did not rely upon the suggestion of Jowitt J. at first instance ([1996] 1 W.L.R.1005) that there was no duty to give reasons in respect of a voluntary consultation)

26. (See, e.g. R. v Criminal Injuries Compensation Board v Gambles [1994] P.I.Q.R. 314 (CICB's reasons contained a defect such that the decision could not stand, in failing to establish or disclose a rational and proportionate nexus between the conduct of the applicant and the decision not to offer him even a discounted award). But see now R. v Criminal Injuries Compensation Board Ex p. Cook [1996] 1 W.L.R.1037, CA) On applications for judicial review, it is the practice of government departments and public bodies to explain their reasons for their actions irrespective of any legal obligation to do so, where the outcome of the applications will depend on these reasons. As Lord Donaldson M.R. has said, judicial review "is a process which falls to be considered with all the cards face upwards on the table and the vast majority of the cards start in the authority's hands",²⁷ But in those cases where it is only because of the demands of procedural fairness or fairness that reasons are given, it may be that a lower standard applied; reasons may be as brief as a few sentences if that is enough to convey the substance of the decision²⁸.

27. (R. v Lancashire CC Ex p. Huddleston [1986] 2 All E.R.941; OFT v IBA Healthcare [2004] I.C.R. 1364)

28. (R. v Civil Service Appeal Board Ex p. Cunningham [1991] 4 All E.R.310) In the light of the above, in the opinion of this court, the impugned Order is not sustainable as it does not disclose the reasons that weighed on the collective wisdom of the Council, in reversing concurrent findings of the lower authorities. Consequently, the writ petition is allowed and the impugned order is quashed in so far as it affects the petitioner and the matter is remanded for a fresh consideration, by the MCI and disposal in accordance with law. Having regard to the fact that the matter has been hanging fire for several years now, it is requested that the MCI expedite further consideration and pass appropriate orders in accordance with law and in any event, within a period of four months from the date of receipt of a certified copy of this order.

Sd/-

JUDGE nv*